

Confidential Information, except as provided herein, may result in irreparable injury for which a remedy in money damages would be inadequate. The Parties further agree that in the event of such disclosure or threatened disclosure: (a) the disclosing Party shall be entitled to seek an injunction to prevent the breach or threatened breach in addition to any other remedies available to the disclosing Party at law or in equity; and (b) each Party hereby acknowledges that such an injunction is appropriate and warranted in such case. All Confidential Information disclosed under this Agreement will remain the property of the disclosing Party. No license or right under any intellectual property right is granted under this Agreement or by any disclosure of Confidential Information except as expressly stated in this Agreement.

7. WARRANTY & INDEMNIFICATION

7.1 Both Parties hereby represent and warrant that they are legally entitled to enter into this Agreement.

7.2 EXCEPT AS EXPRESSLY STATED HEREIN, ANYTHING PROVIDED IN CONNECTION WITH THIS AGREEMENT IS PROVIDED "AS-IS", WITHOUT ANY WARRANTIES OF ANY KIND. EACH PARTY DISCLAIMS ANY IMPLIED WARRANTIES, INCLUDING, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY FOR A PARTICULAR PURPOSE.

7.3 Member will indemnify, defend (at GitLab's request) and hold harmless GitLab and its Affiliates and their respective directors, officers, employees, agents, contractors, end users and licensees from and against any claims, losses, costs, expenses (including reasonable attorneys' fees), damages or liabilities based on or arising from: (a) the Member's use of the GitLab Software and/or GitLab for Open Source Program materials, and/or (b) Member's relationships or interactions with any end users / students. GitLab may at its own expense participate in the defense and settlement of any claim with its own counsel, and the Member may not settle a claim without GitLab's prior written consent (not to be unreasonably withheld).

8. LIMITATIONS OF LIABILITY

8.1 WITH THE EXCEPTION OF MEMBER'S: (A) INDEMNIFICATION OBLIGATIONS UNDER SECTION 7.3, (B) OBLIGATIONS UNDER SECTION 9 (EXPORT), TO THE EXTENT PERMITTED BY LAW, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR LOST PROFITS OR REVENUE OR LOSS OF USE OR DATA, OR SUBSTITUTE GOODS OR SERVICES, OR FOR INCIDENTAL, CONSEQUENTIAL, PUNITIVE, SPECIAL OR EXEMPLARY DAMAGES, OR INDIRECT DAMAGES OF ANY TYPE OR KIND, HOWEVER CAUSED, RELATIONSHIP OR ARISING OUT OF THIS AGREEMENT OR THE RIGHTS, LICENSES, PRODUCTS OR SERVICES PROVIDED UNDER THIS AGREEMENT, WHETHER BY BREACH OF WARRANTY, BREACH OF CONTRACT, NEGLIGENCE, TORT OR ANY OTHER LEGAL THEORY, AND WHETHER OR NOT THE PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

8.2 WITH THE EXCEPTION OF MEMBER'S: (A) INDEMNIFICATION OBLIGATIONS UNDER SECTION 7.3, (B) OBLIGATIONS UNDER SECTION 9 (EXPORT), TO THE EXTENT PERMITTED BY LAW, THE TOTAL, CUMULATIVE LIABILITY OF EACH PARTY ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE RIGHTS, LICENSES, PRODUCTS OR SERVICES PROVIDED UNDER THIS AGREEMENT, WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, OR ANY OTHER LEGAL THEORY, SHALL BE LIMITED TO FIVE HUNDRED U.S. DOLLARS (\$500.00).

9. EXPORT

9.1 The GitLab Software is subject to export restrictions by the United States government and

import restrictions by certain foreign governments. Member agrees to comply with all applicable export and import laws and regulations in its use of the GitLab Software and/or GitLab for Open Source Program materials. Member shall not (and shall not allow any third-party to) remove or export from the United States or allow the export or re-export of any part of the GitLab Software and/or GitLab for Open Source Program materials: (a) into (or to a national or resident of) any embargoed or terrorist-supporting country; (b) to anyone on the U.S. Commerce Department's Table of Denial Orders or U.S. Treasury Department's list of Specially Designated Nationals; (c) to any country to which such export or re-export is restricted or prohibited, or as to which the United States government or any agency thereof requires an export license or other governmental approval at the time of export or re-export without first obtaining such license or approval; or (d) otherwise in violation of any export or import restrictions, laws or regulations of any United States or foreign agency or authority. Member represents and warrants that it is not located in, under the control of, or a national or resident of any such prohibited country or on any such prohibited party list.

10. SECURITY AND DATA PROTECTION

10.1 With respect to Member's use of GitLab Software provided as "Software-as-a-Service", GitLab shall be responsible for establishing and maintaining a commercially reasonable information security program that is designed to: (i) ensure the security and confidentiality of the Member Content; (ii) protect against any anticipated threats or hazards to the security or integrity of the Member Content; (iii) protect against unauthorized access to, or use of, the Member Content; and (iv) ensure that all subcontractors of GitLab, if any, comply with all of the foregoing. In no case shall the safeguards of GitLab's information security program be less stringent than the information security safeguards used by GitLab to protect its own commercially sensitive data. Member shall use commercially reasonable security and anti-virus measures when accessing and using the GitLab Software and/or the GitLab for Open Source Program materials and to prevent unauthorized access to, or use of the GitLab Software and/or the GitLab for Open Source Program materials, and notify GitLab promptly of any such unauthorized access or use of which it becomes aware.

10.2 The terms of the data processing addendum located at <https://about.gitlab.com/handbook/legal/data-processing-agreement/> ("DPA") are hereby incorporated by reference and shall apply to the extent Member Content includes Personal Data, as defined in the DPA. To the extent Personal Data from the European Economic Area (EEA), the United Kingdom and Switzerland are processed by GitLab, the Standard Contractual Clauses shall apply, as further set forth in the DPA. For the purposes of the Standard Contractual Clauses, Member and its applicable Affiliates are each the data exporter, and Member's acceptance of this Agreement shall be treated as its execution of the Standard Contractual Clauses.

10.3 The Parties acknowledge and agree that: (i) the GitLab Software is not designed for the purpose(s) of storing, processing, compiling or transmitting Sensitive Data (as defined herein), and (ii) Member shall not use the GitLab Software, or otherwise provide to GitLab without prior written consent, Sensitive Data under this Agreement. "Sensitive Data" means: (i) special categories of data enumerated in European Union Regulation 2016/679, Article 9(1) or any successor legislation; (ii) patient, medical, or other protected health information regulated by the Health Insurance Portability and Accountability Act (as amended and supplemented) ("HIPAA"); (iii) credit, debit, or other payment card data or financial account information, including bank account numbers or other personally identifiable financial information; (iv) social security numbers, driver's license numbers, or other government

identification numbers; (v) other information subject to regulation or protection under specific laws such as the Children's Online Privacy Protection Act or Gramm-Leach-Bliley Act ("GLBA") (or related rules or regulations); or (vi) any data similar to the above protected under foreign or domestic laws. Member further acknowledges that the GitLab Software and related features are not intended to meet any legal obligations for these uses, including HIPAA and GLBA requirements, and that GitLab is not a Business Associate as defined under HIPAA. Therefore, notwithstanding anything else in this Agreement, GitLab has no liability for Sensitive Data processed in connection with Member's use of the GitLab Software.

10.4 Member shall also maintain and handle all Member Content with reasonably adequate privacy and security measures and in compliance with all applicable privacy laws and regulations.

11. GENERAL PROVISIONS

11.1 Each Party shall comply with all laws and regulations applicable to its performance of its obligations under this Agreement, including without limitation data privacy laws and export control laws and regulations.

11.2 Neither Party shall assign, delegate, subcontract or otherwise transfer, directly or by operation of law, any of the rights or obligations of this Agreement nor any part or all of this Agreement without the prior written consent of the other Party. Any attempt to transfer, assign, delegate or subcontract rights or obligations under this Agreement except as set forth in this Section 11.2 shall be void. Subject to the foregoing limitation, this Agreement shall be binding upon, inure to the benefit of and be enforceable by the parties and their respective successors and permitted assigns.

11.3 A waiver of any right under this Agreement is effective only if it is in writing and signed by the Party against whom the waiver is sought. Any such waiver shall apply only to the circumstances for which it is given. Unless specifically provided otherwise in this Agreement, remedies arising under this Agreement are cumulative and do not exclude any other remedies available at law or in equity.

11.4 This Agreement is not intended to benefit any person or party other than the Parties to this Agreement and, where applicable, the Parties' successors and permitted assigns. The Parties are independent contractors. Nothing in this Agreement shall be construed to create a Membership, joint venture, agency, employment, or fiduciary relationship between the Parties. Neither Party shall have any right or authority to assume or create any obligation of any kind, express or implied, in the name of or on behalf of the other Party, or represent that it has any such authority. Each Party will be responsible for the costs incurred by it in performance of its obligations under this Agreement.

11.5 Except as expressly otherwise provided herein, all notices shall be in writing and deemed delivered the earlier of: (a) actual receipt; (b) upon delivery by a nationally recognized overnight courier (receipt requested) to the receiving party's address as specified herein or updated by written notice; or (c) when received via electronic communications as evidenced by either Party's contemporaneously created computer records.

11.6 Both Parties agree that this Agreement is the complete and exclusive statement of the mutual understanding of the Parties and supersedes and cancels all previous written and oral agreement, communications, and other understandings related to the subject matter of this

Agreement.

11.7 This Agreement and all relations, disputes, claims and other matters arising hereunder (including non- contractual disputes or claims) shall be governed exclusively by, and construed exclusively in accordance with, the laws of the State of California, without regard to conflicts of laws provisions. To the extent permitted by law, choice of laws rules and the United Nations Convention on Contracts for the International Sale of Goods shall not apply. For the purposes of adjudicating any action or proceeding to enforce the terms of this Agreement, the Parties hereby irrevocably consent to the exclusive jurisdiction of, and venue in, the courts of San Francisco county, California.

11.8 If any provision of this Agreement is judicially declared to be invalid, unenforceable or void, such decision shall not have the effect of invalidating or voiding any portion of the remainder of this Agreement, it being the intent and agreement of the Parties that this Agreement shall be deemed amended by modifying such provision to the extent necessary to render it valid, legal and enforceable while preserving its intent or, if such modification is not possible, by substituting therefor another provision that is valid, legal and enforceable and that achieves the same objective.

SECTION: legal/legacy/legacy-psa-v1.md

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GitLab Professional Services Agreement

Deprecated: October 31, 2021

1. Services

1.1 Statements of Work. GitLab will provide Customer with software-related professional services ("Services") as set forth in, one or more, mutually agreed to and signed, statement of work, which shall contain without limitation, a description of the Services, the Services rate(s) and payment terms (each an "SOW"). The parties agree that SOWs may not be complete statements of Services required by Customer and additional Services may be required which would be difficult to determine as of the date of this Service Agreement or of the applicable SOW. At Customer's request, the SOW may include an estimate of charges for the Services, but such estimate shall not be binding on GitLab or convert the SOW into a fixed price contract with respect to such Services. GitLab is under no obligation to perform any Services other than pursuant to an SOW. Notwithstanding the foregoing, if GitLab performs Services at the direction of Customer and the parties have not signed an SOW for such Services, then such Services shall be subject to all terms and conditions of this Service Agreement, and GitLab's then-current rates for such Services shall apply. GitLab may provide Services through its third-party contractors but, in all such cases, GitLab will remain subject to the obligations hereunder.

1.2 Conditions On Providing Services. Customer must assign a project manager who will assume responsibility for management of the project for which the Services are provided. Customer will establish the overall project direction, including assigning and managing the Customer's project personnel team. Customer must provide GitLab with such facilities, equipment and support as are reasonably necessary for GitLab to provide Services, including remote access to

the hardware and systems software configuration on which GitLab supports use of the computer software programs licensed by GitLab to Customer. GitLab owns and will own all right, title and interest to the Services and any work product generated from the Services ("Work Product"), and Customer will execute and deliver to GitLab any documents reasonably necessary to vest in GitLab all right, title and interest therein. Work Product does not include Customer's pre-existing intellectual property or data. Subject to the terms and conditions of this Service Agreement and the applicable license agreement governing Customer's use of GitLab's software, and expressly conditioned on Customer's compliance with the terms of such agreements, GitLab grants Customer a perpetual, non-exclusive, non-transferable license (without the right to sublease or sublicense) to use and copy for use the Work Product for Customer's own, internal computing operations.

1.3 Scheduling of Services. The parties will work together to determine a mutually agreed upon schedule based on the availability of GitLab resources and the agreed-upon project timeline. Services are non- cancellable. Accordingly, upon execution of an SOW, Customer will be liable for the entire amount quoted under the SOW.

2. Payment and Taxes

2.1 Payment. Unless otherwise stated in the applicable SOW, GitLab will invoice Customer for all Services and applicable charges, as GitLab renders the Services or charges are incurred, as applicable. Any unpaid fees are subject to a finance charge of one percent (1.0%) per month, or the maximum permitted by law, whichever is lower, plus all expenses of collection, including reasonable attorneys' fees.

2.2 Taxes. Fees under this Service Agreement are exclusive of all taxes, including national, state or provincial and local use, sales, value-added, property and similar taxes, if any. Customer agrees to pay such taxes (excluding US taxes based on GitLab's net income) unless Customer has provided GitLab with a valid exemption certificate. In the case of any withholding requirements, Customer will pay any required withholding itself and will not reduce the amount paid to GitLab on account thereof.

3. Confidentiality

3.1 Each party (the "Receiving Party") understands that the other party (the "Disclosing Party") has disclosed or may disclose information relating to the Disclosing Party's technology or business (hereinafter referred to as "Proprietary Information" of the Disclosing Party). Without limiting the foregoing, the Licensed Materials are GitLab Proprietary Information.

3.2 The Receiving Party agrees: (i) not to divulge to any third person any such Proprietary Information, (ii) to give access to such Proprietary Information solely to those employees with a need to have access thereto for purposes of this Service Agreement, and (iii) to take the same security precautions to protect against disclosure or unauthorized use of such Proprietary Information that the party takes with its own proprietary information, but in no event will a party apply less than reasonable precautions to protect such Proprietary Information. The Disclosing Party agrees that the foregoing will not apply with respect to any information that the Receiving Party can document (a) is or becomes generally available to the public without any action by, or involvement of, the Receiving Party, or (b) was in its possession or known by it prior to receipt from the Disclosing Party, or (c) was rightfully disclosed to it without restriction by a third party, or (d) was independently developed without use of any Proprietary

Information of the Disclosing Party. Nothing in this Service Agreement will prevent the Receiving Party from disclosing Proprietary Information pursuant to any judicial or governmental order, provided that the Receiving Party gives the Disclosing Party reasonable prior notice of such disclosure to contest such order.

3.3 Each party acknowledges and agrees that the other may suffer irreparable damage in the event of a breach of the terms of Section 3 of this Service Agreement and that such party will be entitled to seek injunctive relief (without the necessity of posting a bond) in the event of any such breach.

3.4 Both parties will have the right to disclose the existence but not the terms and conditions of this Service Agreement, unless such disclosure is approved in writing by both Parties prior to such disclosure, or is included in a filing required to be made by a party with a governmental authority (provided such party will use reasonable efforts to obtain confidential treatment or a protective order) or is made on a confidential basis as reasonably necessary to potential investors or acquirers.

4. TERMINATION

4.1 This Service Agreement shall continue until terminated in accordance with this Section 4. Either party may terminate this Service Agreement upon 15 days' written notice to the other party hereto in the event that Customer has no outstanding SOWs in effect.

4.2 Either party may terminate this Service Agreement immediately upon 15 days' written notice to the other party in the event of any material breach of this Service Agreement (including without limitation, failure to pay any amounts when due hereunder) by such party where such material breach is not cured during such notice period.

4.3 Either party may terminate this Service Agreement, without notice, (i) upon the institution by or against the other party of insolvency, receivership or bankruptcy proceedings (provided such proceedings are not dismissed within one hundred twenty (120) days of such institution), (ii) upon the other party's making an assignment for the benefit of creditors, or (iii) upon the other party's dissolution or ceasing to do business without a successor.

4.4 The following Sections will survive any termination of this Service Agreement: 2 through 4 and 6 through 8.

5. WARRANTY

GitLab represents and warrants that (i) during the term of the applicable SOW and continuing for ninety (90) days after the completion of Services pursuant to that SOW, GitLab will render all Services under such SOW with reasonable care and skill. If, at any time, GitLab fails to comply with the warranty in this Section, Customer may promptly notify GitLab in writing of any such noncompliance. GitLab will, within thirty (30) days of receipt of such written notification, either correct the noncompliance or provide Customer with a plan for correcting the noncompliance. If the noncompliance is not corrected or if a reasonably acceptable plan for correcting them is not established during such period, Customer may terminate this Service Agreement as its sole and exclusive remedy for such noncompliance.

6. WARRANTY DISCLAIMER

THE SERVICES AND ANYTHING PROVIDED IN CONNECTION WITH THIS SERVICE AGREEMENT ARE "AS IS," WITHOUT ANY WARRANTIES OF ANY KIND. GITLAB AND ITS LICENSORS HEREBY DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

7. LIMITATION OF LIABILITY

IN NO EVENT WILL EITHER PARTY BE LIABLE FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE SERVICES PROVIDED IN CONNECTION WITH THIS SERVICE AGREEMENT, INCLUDING WITHOUT LIMITATION, REVENUE OR ANTICIPATED PROFITS OR LOST BUSINESS OR LOST SALES, WHETHER BASED IN CONTRACT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF DAMAGES. THE TOTAL LIABILITY OF EACH PARTY, WHETHER BASED IN CONTRACT (INCLUDING NEGLIGENCE OR STRICT LIABILITY), OR OTHERWISE, WILL NOT EXCEED, IN THE AGGREGATE, THE GREATER OF (i) ONE THOUSAND DOLLARS (\$1,000), OR (ii) THE FEES PAID OR PAYABLE TO GITLAB HEREUNDER IN ONE YEAR PERIOD ENDING ON THE DATE THAT A CLAIM OR DEMAND IS FIRST ASSERTED. THE FOREGOING LIMITATIONS WILL APPLY NOTWITHSTANDING ANY FAILURE OF ESSENTIAL PURPOSE OF A LIMITED REMEDY.

8. MISCELLANEOUS

If any provision of this Service Agreement is found to be unenforceable or invalid, that provision will be limited or eliminated to the minimum extent necessary so that this Service Agreement will otherwise remain in full force and effect and enforceable. This Service Agreement is not assignable, transferable or sublicensable by either party without the other party's prior written consent, not to be unreasonably withheld or delayed; provided that either party may transfer and/or assign this Service Agreement to a successor in the event of a sale of all or substantially all of its business or assets to which this Service Agreement relates. Both parties agree that this Service Agreement, including each SOW which incorporates these terms, is the complete and exclusive statement of the mutual understanding of the parties and supersedes and cancels all previous written and oral agreements, communications and other understandings relating to the subject matter of this Service Agreement, and that all waivers and modifications must be in a writing signed or otherwise agreed to by each party, except as otherwise provided herein. No agency, partnership, joint venture, or employment is created as a result of this Service Agreement and neither party has any authority of any kind to bind the other in any respect whatsoever. In any action or proceeding to enforce rights under this Service Agreement, the prevailing party will be entitled to recover costs and attorneys' fees. All notices under this Service Agreement will be in writing and will be deemed to have been duly given when received, if personally delivered; when receipt is electronically confirmed, if transmitted by facsimile or e-mail; and upon receipt, if sent by certified or registered mail (return receipt requested), postage prepaid. GitLab will not be liable for any loss resulting from a cause over which it does not have direct control. This Service Agreement will be governed by the laws of the State of California, U.S.A. without regard to its conflict of laws provisions. The federal and state courts sitting in San Francisco County, California, U.S.A. will have proper and exclusive jurisdiction and venue with respect to any disputes arising from or related to the subject matter of this Service Agreement.

9. DATA PRIVACY

Customer shall ensure that any and all information or data, including without limitation,

personal data, used by Customer in connection with the Agreement ("Customer Data") is collected, processed, transferred and used in full compliance with Applicable Data Protection Laws (as defined below) and that it has all obtained all necessary authorizations and consents from any data subjects to process Customer Data. Customer shall adopt and maintain appropriate organizational, technical and security measures prior to any such collection, processing or transfer in order to protect against unauthorized access to or use of Customer Data. Customer shall immediately inform GitLab upon becoming aware of any breach within the meaning of Applicable Data Protection Law relating to Customer Data (a "Security Incident") and to cooperate with GitLab in any investigation thereof and in the implementation of any measures reasonably required to be taken in response thereto. If required by Applicable Data Protection Laws, the parties will enter into standard contractual clauses under GDPR (as defined below) for the transfer of any Customer Data outside of the European Union. For purposes hereof: (a) "Applicable Data Protection Laws" means any applicable laws, statutes or regulations as may be amended, extended or re-enacted from time to time which relate to personal data including without limitation (i) prior to 25 May 2018, the EU Data Protection Directive 95/46/EC as transposed into EU Member State law; (ii) from and after 25 May 2018, GDPR and any EU Member State laws implementing the GDPR; and (iii) the e-Privacy Directive 2002/58/EC, as amended and as transposed into EU Member State law and any legislation replacing the e-Privacy Directive and (b) "GDPR" means the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

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Deprecated 2024-08-29

This Professional Services Agreement, including any exhibits, schedules, appendices and addenda (collectively, the "Agreement") is between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104, or a different GitLab Affiliate listed as "GitLab" on an Order Form, (in each case, "GitLab"), and the individual or entity signing any SOW, or any Order Form, that references this Agreement ("Customer"). This Agreement is entered into (the "Effective Date") on the earlier of (a) GitLab's acceptance of an Order Form referencing this Agreement, or (b) GitLab and Customer executing an SOW referencing this Agreement.

Individual Signing on Behalf of Company. IF THE INDIVIDUAL ACCEPTING THIS AGREEMENT IS ACCEPTING ON BEHALF OF A LEGAL ENTITY, SUCH INDIVIDUAL REPRESENTS THAT THEY HAVE THE AUTHORITY TO BIND SUCH ENTERPRISE AND ITS AFFILIATES TO THESE TERMS AND CONDITIONS, IN WHICH CASE THE TERM "CUSTOMER" SHALL REFER TO SUCH ENTERPRISE AND ITS AFFILIATES.

Individual Not Authorized to Sign on Behalf of Company. IF THE INDIVIDUAL ACCEPTING THIS AGREEMENT DOES NOT HAVE SUCH AUTHORITY, OR DOES NOT AGREE WITH THESE TERMS AND CONDITIONS, THE INDIVIDUAL MUST NOT ACCEPT THIS AGREEMENT AND MAY NOT USE OR RECEIVE THE PROFESSIONAL SERVICES.

1. DEFINITIONS

"Affiliate" means any entity(ies) controlling, controlled by, and/or under common control with

a party hereto, where "control" means the ownership of more than 50% of the voting securities in such entity.

"Authorized Partner" is a reseller or distributor that is enabled and authorized by GitLab to sell Professional Services to be delivered by GitLab subject to supplemental terms, conditions and partner program requirements.

"Change Order" means any change to an SOW or Order Form, as applicable, as described in Section 2.2 below. Upon the parties' mutual execution of a Change Order, it will be deemed incorporated by reference in the applicable SOW or in the absence of an SOW, within the Order Form, as applicable.

"Customer Content" is all information, content and data provided by or on behalf of Customer or made available or otherwise utilized in the provisioning of the Professional Services.

"Developments" means Improvements to GitLab's Pre-Existing Work, new technology, written materials, or other deliverables under this Agreement but excluding any Pre-Existing Work.

"Fees" are those rates and fees set forth within the Order Form or SOW as applicable.

"Improvements" means all modifications and derivative works to Pre-Existing Works resulting from the Professional Services contemplated by this Agreement.

"Order Form" is a transactional document that includes a description of the Professional Services being purchased, the applicable Fees, payment terms and other transaction details, and where no SOW is contemplated, the Order Form will include a predefined scope, level of effort and deliverables as set forth at <<https://about.gitlab.com/services/catalog/>> and sold on either a time and materials basis for specified rates or for a fixed fee as applicable.

"Pre-Existing Work" means all rights, title and interest in and to a party's technology and Confidential Information, including all intellectual property rights imbued to a party as of the Effective Date of this Agreement, or as applicable, the effective date of any SOW or Order Form.

"Professional Services" means the GitLab services offerings including, without limitation, implementation, configuration, consulting, or training services to be provided to Customer under any applicable SOW or Order Form.

"SOW" means a written statement of work executed by GitLab and Customer describing Professional Services to be provided hereunder setting forth the time and materials-based objectives (unless otherwise stated as a fixed-fee) including, without limitation, project-specific activities and estimated level of effort. An SOW may be entered into, or incorporated within an Order Form, by and between Customer and GitLab, any GitLab Affiliate, or an Authorized Partner.

"Subscription Agreement" means the separate agreement available here: <<https://about.gitlab.com/terms/>> as between GitLab and Customer governing the parties' rights and obligations with respect to the Subscription Products.

"Subscription Products" means software, and other branded offerings made available by GitLab or its Affiliate(s), including but not limited to, GitLab's "DevOps Lifecycle Application

Platform" offered as self-managed Software or as hosted SaaS Software and as more fully described and defined in GitLab's Subscription Agreement. Notwithstanding the foregoing, all Professional Services purchased under an Order Form as referenced herein are purchased separately from the Subscription Products and all references to "Order Form" herein shall not apply in any way to any Subscription Products, including without limitation, with respect to payment obligations and termination rights.

2. PROFESSIONAL SERVICES

2.1 The Professional Services will be provided on a time and materials basis unless otherwise mutually agreed by the parties in writing such as in a mutually executed Order Form or SOW as applicable. Customer shall reimburse GitLab for approved expenses reasonably incurred in the performance of Professional Services, provided GitLab shall provide valid receipts and other reasonable substantiation to Customer upon request. GitLab may provide the Professional Services through its third-party contractors but, in all such cases, GitLab will remain responsible for such contractor's performance pursuant to the terms hereunder.

2.2 If the parties desire to make changes to an Order Form or SOW during the engagement to address changes in scope or cost, the parties will complete and execute a Change Order. Customer acknowledges that it may need to purchase additional Professional Services if not completed within any estimated time frames as presented within an Order or SOW.

2.3 This Agreement is limited to Professional Services and does not convey any right to use Subscription Products. Any use of Subscription Products by Customer will be governed by GitLab's Subscription Agreement or other separate agreement entered into by the parties explicitly governing such rights and obligations. Customer agrees that its purchase of Professional Services is not contingent on: (i) the delivery of any future Subscription Products functionality or features, other than any deliverables as set forth and subject to the terms of the applicable SOW or Order Form; or (ii) on any oral or written public comments by GitLab regarding future Subscription Products' functionality or features.

3. CUSTOMER COOPERATION

3.1 Customer will reasonably cooperate and use good faith efforts with GitLab to facilitate the performance of the Professional Services which shall include, but not be limited, to the following: (i) assigning a project manager with the requisite skills and training to serve as Customer's primary point of contact; (ii) allocating sufficient resources to ensure Customer's ability to meet its obligations; (iii) establishing the overall project direction, including assigning and managing the Customer's project personnel team; and (iv) providing GitLab with, or access to, such facilities (if applicable), equipment and support as are reasonably necessary for GitLab to provide Professional Services, including remote access to the hardware and systems software configuration on which GitLab supports use of the Subscription Products licensed by GitLab to Customer.

4. ORDERING PROCESS

4.1 This Agreement applies to Professional Services that Customer purchases directly from GitLab, a GitLab Affiliate, or from an Authorized Partner. GitLab will provide to Customer the Professional Services for the Fees specified in an executed Order Form or SOW, or otherwise transaction document acceptable to GitLab such as a purchase order or similar document

referencing a current GitLab quote number or upon GitLab's election to begin delivery of the applicable Professional Services. For the avoidance of doubt, in the event Customer purchases Professional Services from an Authorized Partner: (i) GitLab shall have no obligations to Customer with respect to any terms and conditions outside of this Agreement unless otherwise explicitly agreed to in writing between Customer and GitLab; and (ii) the provisions of Section 6 (Payment of Fees) shall not apply as all terms of payment shall be directly as between Customer and the Authorized Partner.

5. TERM AND TERMINATION

5.1 The Agreement commences on the Effective Date and continues until it is terminated in accordance with this Section 5.

5.2 Either party may terminate this Agreement upon fifteen (15) days' prior written notice to the other party hereto. Unless otherwise stated herein, termination of this Agreement shall not affect any Professional Services currently being delivered under an SOW or Order Form, and this Agreement shall remain in full force and effect until the completion thereof.

5.3 Either party may terminate this Agreement and/or any SOW or Order Form executed between the parties if: (i) the other party materially breaches this Agreement and does not cure the breach within thirty (30) days after written notice; or (ii) the other party becomes the subject of a petition in bankruptcy or any other proceeding relating to insolvency, receivership, liquidation or assignment for the benefit of creditors.

5.4 GitLab may (at its sole discretion) suspend delivering Professional Service if Customer breaches the terms of Section 6 (Payment of Fees) until such breach is remedied.

5.5 In the event this Agreement is terminated by Customer in accordance with Section 5.3, GitLab will refund to Customer a prorated amount equal to pre-paid Fees for the unused portion of Professional Services as of the termination date, if any. If this Agreement is terminated by GitLab in accordance with this Section 5, Customer will pay (if applicable) any and all unpaid Fees due and payable as of the date of termination, to the extent permitted by applicable law. For the avoidance of doubt, in no event will termination relieve Customer of its obligation to pay any Fees payable to GitLab for the Professional Services performed in the period prior to the effective date of termination

5.6 Except as explicitly provided for herein, upon termination of this Agreement (or any SOW or Order Form as applicable) Customer shall not be entitled to any refund or credit.

6. PAYMENT OF FEES

6.1 Unless otherwise stated in the applicable SOW or Order Form, GitLab will invoice Customer for Professional Services as rendered on a time and materials basis, provided any fixed fee Professional Services shall be paid upfront in full and shall be non-cancellable. Customer will pay GitLab the applicable Fees without any right of set-off or deduction. All payments will be made in accordance with the payment details stated within the applicable Order Form or SOW. If not otherwise specified, all Fees will be due and payable within thirty (30) days of Customer's receipt of an invoice. Except as expressly set forth in this Agreement, all Fees paid or due hereunder (including prepaid amounts) are non-refundable.

6.2 Any unpaid late Fees are subject to a finance charge of one percent (1.0%) per month, or the maximum permitted by law, whichever is lower, plus all expenses of collection, including reasonable attorneys' fees. Fees under this Agreement are exclusive of any and all taxes or duties, now or hereafter imposed by any governmental authority, including, but not limited to any national, state or provincial tax, sales tax, value-added tax, property and similar taxes, if any. Fees under this Agreement shall be paid without any withholding or deduction. In the case of any deduction or withholding requirements, Customer will pay any required withholding itself and will not reduce the amount to be paid to GitLab on account thereof.

7. CONFIDENTIALITY

7.1 Each party (the "Receiving Party") understands that the other party (the "Disclosing Party") has disclosed or may disclose information relating to the Disclosing Party's technology or business (hereinafter referred to as "Confidential Information"). Such Confidential Information shall be either: (i) identified as confidential at the time of disclosure; or (ii) the nature of such information and/or the manner of disclosure are such that a reasonable person would understand it to be confidential.

7.2 The Receiving Party agrees: (i) not to divulge to any third person any such Confidential Information; (ii) to give access to such Confidential Information solely to those employees with a need to have access thereto for purposes of this Agreement; and (iii) to take the same security precautions to protect against disclosure or unauthorized use of such Confidential Information that the party takes with its own confidential information, but in no event will a party apply less than reasonable precautions to protect such Confidential Information.

7.3 The Disclosing Party agrees that Section 7.2 will not apply with respect to any information for which the Receiving Party can document: (i) is or becomes generally available to the public without any action by, or involvement of, the Receiving Party; or (ii) was in its possession or known by it prior to receipt from the Disclosing Party; or (iii) was rightfully disclosed to it without restriction by a third party; or (iv) was independently developed without use of any Confidential Information of the Disclosing Party.

7.4 The parties' obligations with respect to the protection of Confidential Information shall remain in force for a period three (3) years following the receipt of such Confidential Information and shall survive any termination or expiration of this Agreement.

7.5 Nothing in this Agreement will prevent the Receiving Party from disclosing Confidential Information pursuant to any judicial or governmental order, provided that the Receiving Party gives the Disclosing Party, when legally possible, reasonable prior notice of such disclosure to allow the Disclosing Party to contest such order.

7.6 Each party acknowledges and agrees that the other may suffer irreparable damage in the event of a breach of the terms of this Section 7 and that such party will be entitled to seek injunctive relief (without the necessity of posting a bond) in the event of any such breach.

7.7 Both parties will have the right to disclose Confidential Information in connection with: (i) a required filing to a governmental authority (provided such party will use reasonable efforts to obtain confidential treatment or a protective order); or (ii) disclosures made to potential investors or acquirers, provided that at all times the Confidential Information shall be protected in a manner no less stringent as set forth in this Section 7.

8. PROPRIETARY RIGHTS

8.1 Each party will retain all rights, title and interest in their Pre-Existing Works. Except as explicitly set forth herein each party reserves all intellectual property rights not expressly granted to the other party, and no right, title or interest in a party's Pre-Existing Works are transferred to the other party. Further, this Agreement does not contemplate Professional Services for the provision of any Improvements to Customer's Pre-Existing Works, and any such deliverable will be subject to separate terms and conditions as to be mutually and explicitly identified and agreed between the parties in a fully executed SOW, or other form of written agreement.

8.2 To the extent applicable, Customer hereby grants GitLab a non-transferable, non-exclusive, world-wide and royalty free license to use Customer's Pre-Existing Works necessary to provide the Professional Services under this Agreement. To the extent GitLab Pre-Existing Works or Developments are incorporated into the Professional Services or deliverables provided under this Agreement, such GitLab Pre-Existing Works and Developments are provided to Customer in a non-transferable, non-exclusive, world-wide and royalty free license to use solely for Customer's internal business purposes subject to the applicable license agreement(s) governing Customer's use of GitLab's Subscription Products, and expressly conditioned on Customer's compliance with the terms of such agreement(s). Notwithstanding the foregoing, Customer will own the portion of any deliverable provided to Customer in tangible form consisting of written reports, analyses, architecture diagrams, project plans and similar working documents.

8.3 For the avoidance of doubt, GitLab is not restricted from developing, implementing, marketing or selling services or deliverables for other customers or projects that are similar to the Professional Services or deliverables provided under this Agreement. Further, any Developments resulting from the provision of the Professional Services hereunder will be owned by GitLab and Customer will execute and deliver to GitLab any documents reasonably necessary to vest in GitLab all right, title and interest therein subject always to the terms of any applicable open source license.

9. LIMITED WARRANTY

9.1 GitLab represents and warrants that its provision of Professional Services under an SOW or Order Form, as applicable, will be rendered in a professional and workmanlike manner. If GitLab fails to meet the foregoing warranty, upon Customer's written notice within ninety (90) days after completion of the applicable Professional Services, GitLab will at its option and expense either: (i) re-perform and correct of the nonconforming Professional Services within thirty (30) days; or (ii) provide a plan for correcting the nonconforming Professional Services within such thirty (30) day period. If the nonconforming Professional Services are not corrected, or if a reasonably acceptable plan for correcting them is not established during such period, Customer may terminate this Agreement, or the respective SOW, and receive a pro-rata refund for any pre-paid, unused portion of the Professional Services. The foregoing represents Customer's sole and exclusive remedy for a breach of this Section 9.1

9.2 The warranties in this Agreement are void to the extent caused by Customer's: (i) alteration or modification of the Professional Services not otherwise directed by GitLab or its authorized representatives in writing; (ii) failure to meet: (a) the minimum system requirements as made available by GitLab including those set forth here: <https://docs.gitlab.com/ee/install/requirements.html>; or (b) its obligations set forth in this

Agreement or an SOW including, without limitation, those set forth in Section 3 (Customer Cooperation) above, to enable the provision of the Professional Services.

9.3 WARRANTY DISCLAIMER. SECTION 9.1 SET FORTH GITLAB'S EXCLUSIVE WARRANTY WITH RESPECT TO PROFESSIONAL SERVICES, AND IS IN LIEU OF ALL OTHER WARRANTIES. GITLAB DOES NOT MAKE ANY WARRANTY OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, GITLAB SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES, INCLUDING ANY WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

10. LIMITATION OF LIABILITY

10.1 TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL EITHER PARTY BE LIABLE FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE PROFESSIONAL SERVICES PROVIDED HEREUNDER, INCLUDING BUT NOT LIMITED TO, LIMITATION, LOSS OF REVENUE, ANTICIPATED PROFITS, LOST BUSINESS OR LOST SALES, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF DAMAGES.

10.2 TO THE EXTENT PERMITTED BY APPLICABLE LAW THE TOTAL LIABILITY OF EACH PARTY, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE OR STRICT LIABILITY), OR OTHERWISE, WILL NOT EXCEED THE AGGREGATE THE FEES PAID OR PAYABLE TO GITLAB HEREUNDER IN ONE YEAR PERIOD PRECEDING THE FIRST INCIDENT OUT OF WHICH THE LIABILITY AROSE. THE FOREGOING LIMITATIONS WILL APPLY NOTWITHSTANDING ANY FAILURE OF ESSENTIAL PURPOSE OF ANY LIMITED REMEDY. THIS LIMITED LIABILITY IS CUMULATIVE AND NOT PER INCIDENT.

11. SECURITY / DATA PROTECTION

11.1 Without limiting GitLab's obligations as stated in Section 7 (Confidentiality), GitLab shall be responsible for establishing and maintaining a commercially reasonable information security program with regard to the delivery of Professional Services that is designed to: (i) ensure the security and confidentiality of the Customer Content; (ii) protect against any anticipated threats or hazards to the security or integrity of the Customer Content; (iii) protect against unauthorized access to, or use of, the Customer Content; and (iv) ensure that all subcontractors of GitLab, if any, comply with all of the foregoing. In no case shall the safeguards of GitLab's information security program be less stringent than the information security safeguards used by GitLab to protect its own commercially sensitive data.

11.2 With respect to the protection of information, the GitLab Privacy Statement located here <https://about.gitlab.com/privacy/>, shall apply. If this Agreement is entered into on behalf of an Enterprise, the terms of the data processing addendum at <https://about.gitlab.com/handbook/legal/data-processing-agreement/> ("DPA") are hereby incorporated by reference and shall apply to the extent Customer Content includes Personal Data, as defined in the DPA. To the extent Personal Data from the European Economic Area (EEA), the United Kingdom and Switzerland are processed by GitLab, the Standard Contractual Clauses shall apply, as further set forth in the DPA. For the purposes of the Standard Contractual Clauses, Customer and its applicable Affiliates are each the data exporter, and Customer's acceptance of this Agreement, and an applicable Affiliate's execution of an Order Form, shall be treated as its execution of the Standard Contractual Clauses.

12. FORCE MAJEURE

12.1 GitLab and Customer will not be liable for any default or delay in the performance of the Professional Services contemplated hereunder, excluding any payments obligations, to the extent that such default or delay is caused, directly or indirectly, by fire, flood, earthquake, explosions, elements of nature, acts of God, acts or regulations of government bodies, nuclear, chemical or biological contamination, court orders arising out of circumstances other than a breach of this Agreement by the Non-performing Party (as defined below), acts of war, terrorism, riots, civil disorders, rebellions or revolutions, strikes, lockouts or labor difficulties, epidemics or by any other event or circumstance that is beyond the reasonable control of GitLab or Customer. The party that is unable to perform shall be referred to as the "Non-performing Party." Such an event or circumstance giving rise to the default or delay is hereby referred to as a "Force Majeure Event." The Non-performing Party will be excused from any further performance obligations affected by such Force Majeure Event, other than any payment obligations due hereunder, for as long as such Force Majeure Event continues and the Non-performing Party continues to use commercially reasonable efforts to resume performance. Except as expressly excused in this Section 12, each party will continue to perform its respective obligations under this Agreement during a Force Majeure Event.

13. MISCELLANEOUS

13.1 Each party will comply with all laws and regulations with regard to meeting its obligations, and the exercise of its rights, under this Agreement. The Professional Services and any deliverables provided hereunder may be subject to export laws of the United States or other jurisdictions and as such each party represents that it is not named on any U.S. government denied-party list. Customer further acknowledges and agrees it shall not permit the export or re-export of any deliverables provided as a result of such Professional Services to a U.S. embargoed country or region, Designated National or in violation of any other U.S. export law or regulation. "Designated National" shall mean any person or entity on the U.S. Department of Treasury's List of Specially Designated nationals or the U.S. Department of Commerce's Table of Denial Orders.

13.2 If any provision of this Agreement is found to be unenforceable or invalid, that provision will be limited or eliminated to the minimum extent necessary so that this Agreement will otherwise remain in full force and effect and enforceable.

13.3 All provisions of this Agreement that by their nature should survive termination will survive termination including, without limitation, the sections titled "Term and Termination," "Payment of Fees," "Confidentiality," "Warranty Disclaimer," "Limitations of Liability," and "Miscellaneous."

13.4 This Agreement is not assignable, transferable or sublicensable by either party without the other party's prior written consent, not to be unreasonably withheld or delayed; provided that either party may transfer and/or assign this Agreement to a successor in the event of a sale of all, or substantially all, of its business or assets to which this Agreement relates.

13.5 This Agreement, along with any Order Form or SOW that incorporates this Agreement by reference, is the complete and exclusive statement of the mutual understanding of the parties and supersedes and cancels all previous written and oral agreements, communications and other understandings relating to the subject matter of this Agreement. Notwithstanding any language

to the contrary therein, no terms or conditions stated in Customer's purchase order or other document will be incorporated into or form any part of this Agreement, and all such terms are void and rejected by GitLab. To the extent of a conflict as between the following documents, such conflict shall be resolved in the following order of precedence: (i) an SOW; (ii) an Order Form; (iii) this Agreement unless the parties explicitly agree otherwise as evidenced in a writing executed by the parties' authorized representatives.

13.6 No failure or delay by either party in exercising any right under this Agreement will constitute a waiver of that right. All waivers and modifications must be in a writing signed or otherwise agreed to by each party, except as otherwise provided herein.

13.7 The relationship of GitLab and Customer is that of independent contractors. There is no relationship of agency, partnership, joint venture, or employment is created as a result of this Agreement and neither party has any authority of any kind to bind the other in any respect whatsoever.

13.8 In any action or proceeding to enforce rights under this Agreement, the prevailing party will be entitled to recover costs and reasonable attorneys' fees.

13.9 All notices under this Agreement will be in writing and will be deemed to have been duly given when received, if personally delivered; when receipt is electronically confirmed, if transmitted by facsimile or e-mail; and upon receipt, if sent by certified or registered mail (return receipt requested), postage prepaid.

13.10 This Agreement will be governed by the laws of the State of California, U.S.A. without regard to its conflict of laws provisions. The federal and state courts sitting in San Francisco County, California, U.S.A. will have proper and exclusive jurisdiction and venue with respect to any disputes arising from or related to the subject matter of this Agreement. The United Nations Convention on Contracts for the International Sale of Goods is expressly disclaimed by the Parties with respect to this Agreement and the transactions contemplated hereby.

SECTION: legal/legacy/legacy-psa-v3.md

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Deprecated 2025-03-05

(Additional Terms)

These Professional Services Terms (·Terms·) are between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different GitLab Affiliate as listed as ·GitLab· on an Order Form) (·GitLab·), and the entity accepting these Terms (·Customer·). These Terms are effective as of the earlier of (a) Customer's acceptance of these Terms within (i) via an Order Form or (b) via a SOW (·Effective Date·). Capitalized terms not otherwise defined herein will have the meaning set forth in the Subscription Agreement (defined below).

1. DEFINITIONS

·Change Order" means any change to an SOW or Order Form, as applicable, as described in Section 2.3 below.

·Developments· means Improvements to GitLab's Pre-Existing Work, new technology, written materials, or other deliverables under this Agreement, but excluding any Pre-Existing Work.

·Enhanced Technical Support Catalog· means the predefined scope, level of effort, and deliverables for certain Enhanced Support Services, as set forth at <https://about.gitlab.com/support/enhanced-support-offerings/>.

·Improvements· means all modifications and derivative works to Pre-Existing Works resulting from the Professional Services contemplated by these Terms.

·Order Form· as defined in the Agreement will be updated to include an ordering document which contains (i) the description of the Professional Services being purchased, as may be further defined in a SOW, from the (a) the Enhanced Technical Support Catalog, (b) the Professional Services Catalog, or (c) such other service catalogs as made available by GitLab from time to time, and, the applicable Fees, payment terms, and other transaction details, sold on either a time and materials basis for specified rates, or for a fixed fee as applicable.

·Pre-Existing Work· means all rights, title and interest in and to a party's technology and Confidential Information, including all intellectual property rights imbued to a party as of the Effective Date of these Terms, or as applicable, the effective date of any SOW or Order Form.

·Professional Services· means the GitLab services offerings including, without limitation, Success Services implementation, configuration, consulting, dedicated engineering services or training services to be provided to Customer under any applicable SOW or Order Form.

·Professional Services Catalog· means the predefined scope, level of effort and deliverables for certain Professional Services, as set forth in the corresponding service name found at <https://about.gitlab.com/services/catalog/>.

·SOW· means a written statement of work executed by GitLab and Customer describing Professional Services to be provided hereunder setting forth the time and materials-based objectives (unless otherwise stated as a fixed-fee) including, without limitation, project-specific activities and estimated level of effort. A SOW may be entered into, or incorporated within an Order Form, by and between Customer and GitLab, any GitLab Affiliate, or an Authorized Partner.

·Subscription Agreement· or ·Agreement· means the GitLab subscription agreement available at <https://about.gitlab.com/terms/current-terms-of-use>, or such other written agreement between the parties governing Customer's use of Software.

·Success Services· means additional GitLab service offerings, including, without limitation, enhanced technical support or enhanced customer success services, purchased separately by Customer to supplement and improve its use of Subscription Products, as set forth in an applicable SOW or Order Form.

2. PROFESSIONAL SERVICES; PAYMENT OF FEES

2.1 These Terms, along with the Subscription Agreement, govern GitLab's provision of Professional Services to Customer. These Terms are incorporated into and form a part of the Subscription Agreement.

2.2 GitLab will provide to Customer the Professional Services for the Fees specified in an executed Order Form or SOW. For the avoidance of doubt, in the event Customer purchases Professional Services from an Authorized Partner: (i) GitLab's obligations to Customer with regard to any Professional Services hereunder will be limited to these Terms unless otherwise explicitly agreed to in writing between Customer and GitLab; and (ii) the provisions of Section 6 (Payment of Fees) of the Agreement will not apply as all terms of payment will be directly as between Customer and the Authorized Partner.

2.3 Fees for the Professional Services will be calculated on a time and materials or fixed fee basis, as set forth in a mutually agreed Order Form or SOW. In addition to the Fees, Customer will reimburse GitLab for Customer approved expenses reasonably incurred in the performance of Professional Services including meals, transportation, overnight accommodations, and any materials purchased for Customer's benefit (charged at cost) (collectively, "Expenses"), if applicable. GitLab will provide valid receipts and other reasonable documentation of such Expenses to Customer upon request and will invoice directly for any such Expenses in addition to the Fees... All Professional Services purchased are purchased separately from the Software and all references to "Order Form" or "SOW" herein will not apply in any way to any Software. GitLab will invoice Customer for Professional Services as rendered on a time and materials basis, unless provided under a fixed fee arrangement, in which case any fixed fee Professional Services, as applicable, will be paid up-front in full and will be non-cancellable.

2.4 Customer acknowledges that it may need to purchase additional Professional Services, or approve additional Expenses, if such Professional Services are not completed within any estimated time frames as presented within an Order Form or SOW. If this event occurs or if the parties desire to make changes to an Order Form or SOW during the engagement to address changes in scope or cost, the parties will complete and execute a Change Order. Upon the parties' mutual execution of a Change Order, it will be deemed incorporated by reference in the applicable SOW or in the absence of an SOW, within the Order Form.

2.5 GitLab may provide Professional Services through its third-party contractors. GitLab will remain responsible for such contractor's performance pursuant to this Agreement or as otherwise agreed with Customer in writing.

3. CUSTOMER COOPERATION

Customer will cooperate with GitLab to facilitate the performance of the Professional Services, which will include, but not be limited, to the following: (i) assigning a project manager with the requisite skills and training to serve as Customer's primary point of contact; (ii) allocating sufficient resources to ensure Customer's ability to meet its obligations; (iii) establishing the overall project direction, including assigning and managing the Customer's project personnel team; and (iv) providing GitLab with, or access to, such facilities (if applicable), equipment and support as are reasonably necessary for GitLab to provide Professional Services, including remote access to the hardware and systems software configuration on which GitLab supports use of the Software licensed by GitLab to Customer.

4. TERM AND TERMINATION

These Terms commence on the Effective Date and continue until the Agreement is terminated in accordance with Section 4 of the Agreement or as otherwise set forth in these Terms. Subject to Section 4.3 of the Agreement, any termination of the Agreement, these Terms or any SOW, Order Form or Change Order will not entitle Customer to any credit or refund for amounts due and payable as of the date of termination. Notwithstanding the foregoing, either Party may terminate an SOW upon fifteen (15) days prior written notice, provided that Customer will remain responsible for all Fees due and owing for Professional Services delivered prior to the effective date of termination, and further provided, Customer will not be entitled to any credit or refund as the result of said termination. GitLab may (at its sole discretion) suspend delivering Professional Service if Customer breaches the terms of Section 2 (Professional Services; Payment of Fees) until such breach is remedied.

5. PROPRIETARY RIGHTS

5.1 Each party will retain all rights, title and interest in their Pre-Existing Works. Except as explicitly set forth herein, each party reserves all intellectual property rights not expressly granted to the other party, and no right, title or interest in a party's Pre-Existing Works are transferred to the other party. Further, these Terms do not contemplate Professional Services for the provision of any Improvements to Customer's Pre-Existing Works, and any such deliverable will be subject to separate terms and conditions as to be mutually and explicitly identified and agreed between the parties in a fully executed SOW or other form of written agreement.

5.2 To the extent applicable, Customer hereby grants GitLab a non-transferable, non-exclusive, world-wide and royalty free license to use Customer's Pre-Existing Works necessary to provide the Professional Services under these Terms. To the extent GitLab Pre-Existing Works or Developments are incorporated into the Professional Services, such GitLab Pre-Existing Works and Developments are provided to Customer in a non-transferable, non-exclusive, world-wide and royalty free license to use solely for Customer's internal business purposes subject to the Agreement, and expressly conditioned on Customer's compliance with the terms of the Agreement. Notwithstanding the foregoing, Customer will own the portion of any deliverable(s) provided to Customer in tangible form consisting of written reports, analyses, architecture diagrams, project plans and similar working documents.

5.3 For the avoidance of doubt, GitLab is not restricted from developing, implementing, marketing or selling services or deliverables for other customers or projects that are similar to the Professional Services or deliverables provided under these Terms. Further, any Developments and/or Feedback Materials resulting from the provision of the Professional Services hereunder will be owned by GitLab and Customer will execute and deliver to GitLab any documents reasonably necessary to vest in GitLab all right, title and interest therein subject always to the terms of any applicable open source license.

5.4 Any use of Software by Customer will be governed by the Agreement. Customer agrees that its purchase of Professional Services is not contingent on: (i) the delivery of any future Software functionality or features, other than any deliverables as set forth in the applicable SOW; or (ii) on any oral or written public comments by GitLab regarding future Software